

# HOUSE . . . . . No. 5489

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, June 9, 2026.

The committee on Ways and Means, to whom was referred the Senate Bill regarding free expression (Senate, No. 2726), reports recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text contained in House document numbered 5489.

For the committee,

AARON MICHLEWITZ.

**The Commonwealth of Massachusetts**

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**In the One Hundred and Ninety-Fourth General Court  
(2025-2026)**  
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By striking out all after the enacting clause and inserting in place thereof the following:—

1           SECTION 1. Section 82 of chapter 71 of the General Laws, as appearing in the 2024  
2   Official Edition, is hereby amended by striking out, in lines 4 to 11, inclusive, the words  
3   “without limitation, the rights and responsibilities of students, collectively and individually, (a)  
4   to express their views through speech and symbols, (b) to write, publish and disseminate their  
5   views, (c) to assemble peaceably on school property for the purpose of expressing their opinions.  
6   Any assembly planned by students during regularly scheduled school hours shall be held only at  
7   a time and place approved in advance by the school principal or his designee” and inserting in  
8   place thereof the following words:- , without limitation, the rights and responsibilities of  
9   students, collectively and individually, to: (a) express their views through speech and symbols;  
10   (b) write, publish and disseminate their views; (c) assemble peaceably on school property for the  
11   purpose of expressing their opinions; provided, that any assembly planned by students during  
12   regularly scheduled school hours shall be held only at a time and place approved in advance by  
13   the school principal or the principal’s designee; and (d) receive information, including, but not  
14   limited to, school library materials determined to be educational and age-appropriate for  
15   inclusion in a school library pursuant to section 82A; provided, that said determination shall be  
16   made by the school library teacher, as defined in subsection (a) of said section 82A.

SECTION 2. Said chapter 71 is hereby further amended by inserting after section 82 the following 5 sections:-

Section 82A. (a) For the purposes of this section and sections 82B to 82E, inclusive, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“School library materials”, textbooks, instructional materials, curricula, books or other library resources.

“School library teacher”, the school library teacher in the district licensed by the department, or in the absence of such a school library teacher, the school official responsible for the selection of school library materials and the use of school library materials and facilities.

(b) Any determination that school library materials are appropriate for inclusion in a school library shall require that the materials: (i) are age appropriate; and (ii) serve an educational purpose.

(c) In making the determination pursuant to subsection (b), the school library teacher shall: (i) use their professional training; and (ii) not base their determination on personal, political or doctrinal views.

Section 82B. (a) Each school committee or other administrative authority of a school library shall establish a written policy for: (i) the selection of school library materials; and (ii) the use of school library materials and library facilities. Each written policy shall be in accordance with the standards adopted by the American Library Association. Annually, not later than July 1, each school district shall file its written policy with the department.

(b) The board of library commissioners, through its affiliate, the Massachusetts Library System, Inc., in consultation with the department, shall make sample policies available for districts.

(c)(1) A written policy pursuant to subsection (a) shall include a complaint process. The policy shall require a process for responding to complaints, challenges and other attempts to remove or restrict school library materials based upon the objections of a person or group consistent with the requirements in section 82C.

(2) The written policy shall require that if school library material is the subject of a complaint, challenge or attempt to remove or restrict its use, it shall remain on the shelves pending a vote of the school committee pursuant to section 82C; provided, that the challenged material was selected for inclusion in the school library by a school library teacher and consistent with section 82A.

(d) Annually, not later than July 1, each school district shall submit to the department a report consisting of a list of complaints, challenges and other attempts to remove or restrict school library materials that were based upon objections of a group or person and the response from the district. The report shall include, for each complaint, challenge or attempt to remove or restrict school library materials, the: (i) school name and location; (ii) title and author of the school library materials; and (iii) outcomes of such complaint, challenge or attempt to remove or restrict school library materials.

Section 82C. (a) The selection of school library materials by a school library teacher for inclusion in a school library shall not be overruled; provided, however, that if there is a

complaint or challenge the school committee shall follow the procedures established in this section for a review of the school library materials.

(b)(1) For any review of the school library materials selected by a school library teacher, the school committee and the superintendent shall appoint a review committee of school personnel to review the school library materials.

(2) The review committee shall hold a public hearing, with notice of the hearing provided to the district. After the public hearing, the review committee shall submit a recommendation to the school committee on whether the school library materials are consistent with the requirements in section 82A.

(3) The school committee shall vote, after receipt of the review committee's recommendations, on whether the school library materials shall be removed from a school library. School library materials shall only be removed from the school library if the school committee finds that, based on clear and convincing evidence, the school library material is: (i) devoid of any educational, literary, artistic, personal or social value; or (ii) not age appropriate for any child who attends the school.

(c) A decision of the school committee to remove school library materials from a school library may be appealed by any student, parent or guardian pursuant to section 5 of chapter 249, including on the grounds that the decision was not supported by clear and convincing evidence.

Section 82D. Nothing in sections 82A to 82C, inclusive, and section 82E shall preclude school library teachers from deciding to remove school library materials that have become outdated or to accommodate new school library materials; provided, that the decision shall be consistent with the requirements in subsection (c) of section 82A.

Section 82E. No school library teacher shall lose their librarian licensure or certification and no employee acting as a school library teacher shall be dismissed, disciplined, placed on probation, involuntarily transferred, fined or imprisoned for the selection of school library materials when the selection is made consistent with subsection (c) of section 82A and in accordance with the policy adopted pursuant to section 82B.

SECTION 3. Section 10 of chapter 78 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 8, the words “, male or female,”.

SECTION 4. Said section 10 of said chapter 78, as so appearing, is hereby further amended by striking out, in line 13, the word “chairman” and inserting in place thereof the following word:- chair.

SECTION 5. Section 14 of said chapter 78, as so appearing, is hereby amended by striking out, in line 5, the word “his” and inserting in place thereof the following words:- the member’s.

SECTION 6. Said section 14 of said chapter 78, as so appearing, is hereby further amended by striking out, in line 13, the word “chairman” and inserting in place thereof the following word:- chair.

SECTION 7. Said section 14 of said chapter 78, as so appearing, is hereby further amended by striking out, in lines 18 and 21, the word “his”, each time it appears, and inserting in place thereof, in each instance, the following word:- their.

SECTION 8. Said section 14 of said chapter 78, as so appearing, is hereby further amended by striking out, in line 19, the word “him” and inserting in place thereof the following words:- the director.

SECTION 9. Said section 14 of said chapter 78, as so appearing, is hereby further amended by striking out, in line 22, the word “him” and inserting in place thereof the following words:- the deputy director.

SECTION 10. Said chapter 78 is hereby further amended by striking out section 15 and inserting in place thereof the following section:-

Section 15. (a) The board of library commissioners shall advise the librarian or trustees of any free public library, and may, on request, advise the librarian or other person in charge of the library of any state or county institution, relative to the selection or cataloguing of books and any other matter pertaining to the maintenance or administration of such library.

(b) The board of library commissioners shall make resources available to assist the board of trustees or other administrative authority of a free municipal public library to create or modify written policies, in accordance with the standards adopted by the American Library Association and as required by section 19B, for the: (i) selection of library material; (ii) development of their library collections; (iii) use of materials and facilities; and (iv) process to respond to book challenges.

(c) The board of library commissioners through its affiliate, the Massachusetts Library System, Inc., shall make a model policy, in accordance with the standards adopted by the American Library Association, available for school districts, as defined in section 2 of chapter 70; provided, that the board of library commissioners shall provide resources to help any school

committee or other administrative authority of a school library create or modify written policies for the selection of library materials and the use of materials and facilities in accordance with the standards adopted by the American Library Association.

SECTION 11. Section 19B of said chapter 78, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 22, the word “auditor” and inserting in place thereof the following words:- auditor, and.

SECTION 12. Said section 19B of said chapter 78, as so appearing, is hereby further amended by adding the following clause:-

(8) adopt and post to their website a written policy for the selection and use of library materials and facilities in accordance with section 33; provided, that such policy shall incorporate the American Library Association’s Library Bill of Rights and require that no materials shall be selected, proscribed or removed because of personal, political or doctrinal views.

SECTION 13. Section 33 of said chapter 78, as so appearing, is hereby amended by inserting after the word “establish”, in line 3, the following words:- and implement.

SECTION 14. Said section 33 of said chapter 78, as so appearing, is hereby further amended by inserting after the word “Association”, in line 6, the following words:- including, but not limited to, the American Library Association’s Library Bill of Rights.

SECTION 15. Said section 33 of said chapter 78, as so appearing, is hereby further amended by adding the following sentence:- No librarian shall lose librarian licensure or



142 certification and no employee shall be dismissed, disciplined, placed on probation, involuntarily  
143 transferred, fined or imprisoned for the selection of library materials.

144 SECTION 16. Said chapter 78 is hereby further amended by adding the following  
145 section:-

146 Section 35. Annually, not later than September 1, the board of library commissioners  
147 shall submit a report on book challenges in the commonwealth and the impact on communities to  
148 the clerks of the house of representatives and the senate, the house and senate committees on  
149 ways and means, the joint committee on tourism, arts and cultural development, the joint  
150 committee on education and the joint committee on municipalities and regional government. The  
151 report shall include, for each book challenge, the: (i) location, including the name of the  
152 municipal library and the department; (ii) title and author of the book; and (iii) outcome of such  
153 challenge. The report may also include recommendations to support programming that expands  
154 access to library materials.